PHOTOZIS
STUDIO

MASTER SERVICE & MEDIA LICENSE AGREEMENT

PHOTOZIS INC. | AGREEMENT VERSION 3.6

Last updated: October 29, 2026
Effective date: The date on which the Client accepts this Agreement through booking, electronic acceptance, written acknowledgment, or another documented method of acceptance.

1. GENERAL TERMS & ACCEPTANCE

1.1 Purpose

This Master Service & Media License Agreement ("Agreement") governs the relationship between PHOTOZIS INC. and the individual, real estate agent, brokerage, company, property owner, or other party ordering or using PHOTOZIS services ("Client").

This Agreement applies to services including, without limitation:

- Real estate photography
- Videography
- Drone photography and video
- 3D tours
- Smart 3D Tour Slideshows
- Floor plans
- AR and LiDAR scanning
- Virtual staging
- Virtual cleanup
- Object removal
- Digital retouching
- Architectural and property marketing media
- PHOTOZIS Signature Collection services
- Other media and related services provided by PHOTOZIS

1.2 Acceptance of Agreement

The Client agrees to this Agreement by affirmatively accepting it during booking, electronically signing or acknowledging it, or otherwise providing documented written acceptance.

The Client should not book, access, download, publish, or use PHOTOZIS media unless the Client agrees to these terms.

1.3 Scope of Services

The specific scope of each project is determined by the applicable:

- Booking confirmation
- Accepted quote
- Invoice
- Service selection
- Written correspondence
- Signed addendum

Only services expressly included in the applicable order are included in the purchased scope.

Any additional work may require additional payment.

1.4 Authority to Order Services

The person placing an order represents that they have authority to request the services and arrange lawful access to the property.

If the person is acting on behalf of a brokerage, company, or other entity, that entity will be bound only to the extent the person has authority to bind it.

1.5 Delivery of Agreement with Confirmations and Invoices

PHOTOZIS may deliver or make this Agreement available through a booking page, booking confirmation, invoice, payment request, email attachment, or clearly identified hyperlink. The Client should review these terms before authorizing services or using media.

Where the Client has received reasonable notice of these terms and subsequently affirmatively accepts them, or engages in conduct that establishes acceptance under applicable law, the Agreement may become binding without a handwritten signature. Mere receipt of an invoice, silence, or failure to object does not by itself necessarily constitute acceptance of new terms. Sending an invoice after booking does not retroactively impose additional fees or interest absent a valid agreement.

2. MEDIA CONTENT LICENSE

2.1 License Grant

Subject to full payment and continued compliance with this Agreement, PHOTOZIS grants the Client a limited, non-exclusive, non-transferable, and perpetual license to use the delivered photographs, videos, 3D tours, slideshows, floor plan media, and other approved digital content (“Licensed Content”) for lawful marketing, promotional, and professional purposes.

Permitted uses may include:

- MLS listings
- Property websites
- Brokerage websites
- Agent websites
- Social media
- Digital advertising
- Printed real estate marketing materials
- Professional portfolios
- Past-sales marketing

This license does not transfer copyright ownership.

2.1.1 License Activation and Delivery Before Payment

Receipt of an invoice, delivery of completed files, access to a preview, or access to a download portal does not by itself activate the license. Unless PHOTOZIS expressly authorizes otherwise in writing, the Client may not publish, distribute, advertise, upload to MLS, provide media to third parties, or otherwise use the content commercially before full payment of the applicable invoice. These restrictions apply to the extent consistent with the terms validly agreed for the order.

2.2 Content Access & Storage Policy

Photography

Digital photography is typically maintained on the PHOTOZIS delivery platform for approximately two (2) years, or while the applicable hosting platform remains operational and commercially available.

PHOTOZIS does not guarantee permanent storage.

Clients are responsible for downloading and maintaining their own backups.

Standard 3D Tour

Standard 3D Tours are intended to remain active during the live listing period.

The tour may be deactivated after the property is sold, leased, withdrawn, expired, or otherwise removed from the market.

Reactivation Fee: $35

Reactivation remains subject to technical availability.

Smart 3D Tour Slideshow

Smart 3D Tour Slideshows are hosted for one (1) year from activation.

Annual Renewal Fee: $35

Renewal remains subject to platform availability.

2.3 Prohibited Uses

Unless expressly authorized in writing by PHOTOZIS, the Client may not:

- Sell Licensed Content to another party
- Sublicense Licensed Content
- Transfer Licensed Content to another agent for independent use
- Transfer Licensed Content to a homeowner for independent commercial use
- Transfer Licensed Content to another photography, media, marketing, or editing company
- Use media to market a different property
- Claim ownership of PHOTOZIS copyrights
- Materially alter media in violation of this Agreement
- Use media in a manner that materially misrepresents the property
- Remove protected PHOTOZIS branding or copyright information
- Represent unauthorized third-party modifications as original PHOTOZIS work

Normal distribution through MLS systems, listing portals, social media platforms, and authorized marketing platforms is permitted when reasonably necessary for the Client's licensed marketing use.

3. AI, DIGITAL MODIFICATION & THIRD-PARTY EDITING

3.1 Artificial Intelligence & Third-Party Editing

The Client shall not materially alter, reconstruct, transform, or create derivative versions of Licensed Content using:

- Generative artificial intelligence
- AI image editors
- Third-party retouching services
- External virtual staging companies
- Photoshop generative tools
- Automated image modification systems
- Other third-party editing technologies

without prior written authorization from PHOTOZIS.

3.2 Restricted Modifications

Restricted modifications include, without limitation:

- Virtual staging
- Furniture replacement
- Furniture removal
- Virtual renovation
- Changing room layouts
- Changing permanent property features
- Adding or removing windows
- Changing walls

- Changing doors
- Changing fireplaces
- Changing cabinetry
- Adding or removing fixtures
- Altering structural features
- Material changes to landscaping
- Material changes to architectural elements
- Generative replacement of significant portions of an image
- Other alterations capable of materially changing the viewer’s understanding of the property

3.3 Permitted Technical Adjustments

Routine technical adjustments may be permitted, including:

- File resizing
- Compression
- Format conversion
- Platform-required cropping

provided that such adjustments do not:

- Materially alter the property
- Misrepresent the image
- Remove protected copyright information
- Misrepresent PHOTOZIS authorship

4. PHOTOZIS BRAND INTEGRITY

4.1 Unauthorized Attribution

The Client shall not represent any independently modified, AI-generated, or third-party-edited image as work produced, edited, reviewed, or approved by PHOTOZIS.

4.2 Use of PHOTOZIS Branding on Modified Media

PHOTOZIS logos, watermarks, company names, copyright notices, credits, or other professional attribution may not be retained, added, or displayed on unauthorized materially modified images in a manner suggesting that PHOTOZIS created or approved those modifications.

4.3 Removal of PHOTOZIS Branding

If media is delivered with a:

- PHOTOZIS watermark
- PHOTOZIS logo
- Copyright notice
- Studio identifier
- Other copyright management information

the Client shall not intentionally remove, crop, obscure, erase, replace, or digitally manipulate such information without prior written authorization from PHOTOZIS.

4.4 Brand Reputation

PHOTOZIS has a legitimate commercial interest in protecting its professional reputation and maintaining consistency between its name and the quality of media attributed to it.

The Client shall not knowingly associate PHOTOZIS branding with unauthorized third-party or AI-generated work in a manner reasonably capable of creating false attribution.

5. MLS & PROPERTY REPRESENTATION

5.1 Client Responsibility

The Client is responsible for ensuring that the Client’s marketing materials comply with:

- MLS rules
- Brokerage policies
- Advertising regulations
- Disclosure requirements
- Applicable law

5.2 Virtual Staging & AI Disclosure

The Client is responsible for properly disclosing virtual staging, AI modification, digital renovation, or other alterations where required by applicable rules or law.

5.3 Property Misrepresentation

The Client may not knowingly use PHOTOZIS media to materially misrepresent:

- Property condition
- Architectural layout
- Permanent features
- Fixtures
- Room configuration
- Amenities
- Structural characteristics

6. COPYRIGHT & OWNERSHIP

6.1 Copyright Ownership

Unless expressly transferred through a signed written copyright assignment, all copyrights owned by PHOTOZIS remain the sole property of PHOTOZIS INC.

Payment for services does not transfer copyright ownership.

The Client receives only the license expressly granted by this Agreement.

6.2 PHOTOZIS Promotional Rights

PHOTOZIS may use its own work for:

- Portfolio presentation
- Website display
- Social media
- Advertising
- Samples
- Awards
- Marketing

subject to applicable law and any separate written confidentiality agreement.

6.3 Full Copyright Buyout

A Client wishing to obtain ownership of the copyright must request a separate:

Full Copyright Buyout / Copyright Assignment

Pricing and terms are determined individually.

Any transfer of copyright must be documented in a written agreement signed by the copyright owner or its authorized representative.

7. AR SCANNING, FLOOR PLANS & MEASUREMENTS

7.1 Factual Documentation

PHOTOZIS records the observable state of the property at the time of service.

Measurements are not modified merely to satisfy aesthetic preferences.

7.2 Measurement Technology

Measurements may be obtained using:

- ARCore
- LiDAR
- Augmented reality
- Mobile scanning
- Digital scanning systems
- Other measurement technology

Measurements are approximate.

Absolute mathematical precision is not guaranteed.

7.3 Not for Construction

Unless expressly agreed otherwise in writing, PHOTOZIS measurements and floor plans are intended for real estate marketing and general informational purposes.

They shall not be relied upon as certified architectural or engineering measurements for:

- Construction
- Structural engineering
- Fabrication
- Cabinetry
- Custom furniture
- Permitting
- Code compliance
- Installation

7.4 Client Verification

The Client is responsible for independent manual or professional verification when exact measurements are required.

8. PRICING & PAYMENT

8.1 Payment Requirement and Due Date

Unless a different payment deadline was agreed in writing before the order, invoices are payable within fourteen (14) calendar days of the invoice date. The invoice shall identify the applicable payment deadline. A shorter or longer deadline may apply if agreed in advance.

8.2 Payment Methods and Processing Fees

Zelle payments may be sent to PhotozisStudio@gmail.com. PHOTOZIS does not charge an additional fee for payment received through Zelle.

Credit card payments may be subject to a separately disclosed processing surcharge, only to the extent allowed by applicable law and payment network and processor rules. The amount of any permissible surcharge will be disclosed before payment. A payment method surcharge is not part of the original principal unless lawfully agreed and assessed.

8.3 License Activation and Unpaid Use

The media license does not become effective until full payment for the applicable order has been received, unless PHOTOZIS expressly authorizes earlier use in writing. Use before license activation is unauthorized to the extent provided by the applicable accepted agreement. Delivery of files or an invoice does not transfer copyright ownership or grant an unconditional right of use.

8.4 Chargebacks

If a payment is reversed or charged back, PHOTOZIS may suspend media access and the applicable media license pending resolution of the payment dispute, to the extent permitted by law.

8.5 Late Payment and Overdue Balances

For orders in which the Client accepted this late-payment provision before ordering, PHOTOZIS may assess simple late interest on unpaid principal at an annual rate of nine percent (9%) or the maximum rate legally permitted, whichever is lower, calculated daily beginning on the fifteenth (15th) calendar day after the invoice date. No compound interest will be assessed. The rate and enforceability of any interest depend on applicable law and the parties' agreement; this section does not assert that Illinois law automatically imposes a nine-percent rate.

PHOTOZIS may suspend access to undelivered media, additional revisions, and acceptance or performance of future bookings while balances remain overdue, to the extent permitted by law and the applicable order.

These late-payment provisions apply prospectively only to orders for which the Client validly accepted them before placing the order. Receipt of an invoice alone does not retroactively establish agreement to new late charges. PHOTOZIS may waive a late charge without waiving its rights for future orders.

9. ADDITIONAL SQUARE FOOTAGE, TRAVEL & EXPENSES

9.1 Additional Square Footage

PHOTOZIS packages may include a defined amount of property square footage.

Properties exceeding the included square footage may incur additional charges.

Additional square footage may require additional:

- Photography
- Scanning
- Processing
- Editing
- Floor plan work
- Production time

Applicable charges shall be disclosed through pricing, booking, quotation, or other accepted terms.

9.2 Travel Fees

Travel charges may apply to properties outside PHOTOZIS’s standard service area or requiring additional travel.

9.3 Parking Fees

Where complimentary parking is unavailable, reasonable parking expenses incurred while performing the service may be billed to the Client.

Parking expenses may appear as a separate invoice line item.

10. OPTIONAL & PREMIUM SERVICES

Unless expressly included in the purchased package, the following may constitute additional paid services:

- PHOTOZIS Signature Collection
- PHOTOZIS Perfect

- PHOTOZIS Elegance
- PHOTOZIS Bright
- PHOTOZIS Golden Hour
- PHOTOZIS Rain-to-Shine
- Virtual Staging
- Virtual Clean Up
- Object Removal
- Advanced Retouching
- Additional Floor Plans
- Additional 3D Services
- Additional Video Production
- Custom Digital Enhancements
- Custom Property Marketing Media

Additional work requires Client approval of the applicable price before being performed.

11. COMPLIMENTARY SERVICES & BONUSES

11.1 Discretionary Nature

PHOTOZIS may occasionally provide complimentary:

- Retouching
- Object removal
- Additional photographs
- Virtual cleanup
- Enhanced editing
- Promotional upgrades
- Additional media
- Discounts
- Fee waivers

Such services are provided solely at PHOTOZIS’s discretion.

11.2 No Continuing Entitlement

A complimentary service, discount, waived charge, or promotional enhancement on one project does not create a contractual right to receive the same service free on future projects.

11.3 Waiver of One Fee Does Not Waive Others

Waiver of one charge does not automatically waive:

- Additional square footage
- Travel
- Parking
- Editing

- Retouching
- Other applicable charges

12. REVISIONS & SCOPE OF WORK

12.1 Included Corrections

PHOTOZIS will address legitimate technical failures or missing deliverables within the purchased scope.

12.2 Additional Creative Requests

Requests for:

- New editing directions
- Additional retouching
- Additional images
- Virtual staging
- Cleanup
- Object removal
- Additional areas
- Additional rooms
- Additional visits
- Additional scanning
- Additional video

may incur additional charges.

12.3 Scope Expansion

The booking price is based upon the services, property size, deliverables, and scope agreed upon at the time of booking.

PHOTOZIS is not required to provide materially additional work without additional compensation.

12.4 Virtual Staging — Design Discretion & Revision Policy

12.4.1 Design Direction & Creative Discretion

If the Client does not provide specific design instructions, style preferences, furniture references, color schemes, or other requirements in writing before production begins, PHOTOZIS INC. and its designers shall have full professional creative discretion to determine the Virtual Staging design, including furniture selection, furniture placement, color palette, decorative accessories, room styling, and overall composition. Virtual Staging is a creative visualization service, and individual aesthetic preferences may differ. A Client preference expressed after production begins or after delivery for a different design style, furniture selection, furniture arrangement, or staging concept does not, by itself, constitute a defect or qualify for a complimentary revision. Any such change is subject to the new-staging charges in Section 12.4.3.

12.4.2 One Included Minor Decorative Revision

One (1) reasonable minor decorative revision per virtually staged image is included at no additional charge, subject to technical feasibility. An included minor revision is limited to adding, removing, replacing, or adjusting small decorative accessories, such as a vase, a small tabletop item, or wall artwork, without changing the position, scale, orientation, selection, or arrangement of furniture or the overall staging composition. The included revision is one consolidated request per image, not an unlimited series of separate requests. Additional minor decorative revisions may be quoted and billed separately, with Client approval before work begins.

12.4.3 Furniture Changes & New Staging

Any request to move, reposition, rotate, resize, replace, add, or remove any staged furniture item, including a sofa, chair, table, bed, or cabinet, is outside the included minor revision and shall be treated as a new Virtual Staging service, even if the Client considers the change small. Requests to change the furniture layout, overall room composition, interior style, or design concept, or to create an alternative staging version, are likewise new Virtual Staging services. Each such request will be charged at the full current per-image Virtual Staging price published on PHOTOZIS's official pricing page at the time the new service is requested. PHOTOZIS will confirm the applicable price and obtain the Client's approval before beginning any additional paid work.

12.4.4 Late Design Instructions

Specific styles, inspiration images, furniture references, and other design directions should be provided in writing before production begins. Instructions received after work has begun or after delivery are not automatically included as complimentary revisions. If they require furniture changes, changes to the staging composition, or a new design, the request will be treated as a new paid Virtual Staging service under Section 12.4.3.

12.4.5 Technical Corrections

PHOTOZIS will correct legitimate technical defects or failures to follow specific written instructions accepted before production, to the extent they fall within the agreed scope, without additional charge. Such corrections do not use up the one included minor decorative revision and shall not be charged as a new staging service solely because correcting PHOTOZIS's error requires moving or replacing furniture.

12.4.6 No Unlimited Revisions

Virtual Staging does not include unlimited revisions, unlimited alternative designs, or repeated complete redesigns. Any work beyond the included minor decorative revision or agreed scope requires a separate quote and the Client's approval of the applicable price before work begins.

13. SCOPE ABUSE & BAD-FAITH CONDUCT

13.1 Scope Abuse

The Client may not use an existing booking as a means of obtaining materially more work than was purchased.

Examples may include repeated attempts to obtain:

- Additional editing
- Additional photography
- Additional rooms

- Additional square footage
- Additional staging
- Additional cleanup
- Additional revisions
- Additional visits

without agreeing to corresponding charges.

13.2 Bad-Faith Conduct

PHOTOZIS may determine that an engagement has become commercially unreasonable where the Client engages in conduct including, without limitation:

- Intentionally misrepresenting property size
- Intentionally misrepresenting service requirements
- Repeatedly demanding unpaid services
- Repeatedly disputing previously accepted pricing after work has been performed
- Using threats or improper pressure to obtain additional unpaid work
- Abusing chargeback procedures
- Misusing PHOTOZIS intellectual property
- Misrepresenting PHOTOZIS services
- Intentionally interfering with PHOTOZIS copyright or branding
- Materially deceptive conduct
- Repeated abusive or hostile conduct
- Other material conduct reasonably indicating that the professional relationship is no longer being conducted in good faith

14. RIGHT TO SUSPEND OR TERMINATE ACTIVE SERVICES

14.1 Right to Terminate for Material Business Risk

To the fullest extent permitted by law, PHOTOZIS may suspend or terminate an active engagement when PHOTOZIS reasonably determines that continued performance would expose PHOTOZIS to unreasonable:

- Legal risk
- Financial risk
- Operational risk
- Safety risk
- Intellectual property risk
- Reputational risk
- Professional risk

14.2 Termination for Scope Abuse or Bad Faith

PHOTOZIS may suspend or terminate an active project if the Client materially:

- Abuses the agreed service scope

- Attempts to obtain substantial additional services without payment
- Engages in bad-faith conduct
- Violates intellectual property restrictions
- Misuses PHOTOZIS media
- Materially breaches this Agreement

14.3 Work Already Completed

PHOTOZIS may retain payment properly earned for:

- Work already completed
- Editing already performed
- Photography already performed
- Travel already completed
- Third-party expenses
- Platform expenses
- Other reasonable project costs already incurred

14.4 Refund of Unearned Amounts

If PHOTOZIS terminates an engagement before completing all purchased services, PHOTOZIS may refund amounts attributable to services not yet performed, after accounting for amounts already earned or properly incurred.

15. OPTIONAL FULL REFUND & TERMINATION

15.1 PHOTOZIS Discretionary Full Refund

In appropriate circumstances, PHOTOZIS may, at its sole business discretion, elect to terminate a project and refund all or substantially all amounts paid for that project.

Such refund shall not constitute an admission of:

- Fault
- Liability
- Breach
- Negligence
- Wrongdoing

15.2 Effect of Full Refund on Media License

If PHOTOZIS issues a full refund for a project and expressly terminates the project and media license, the Client’s license to use the associated Licensed Content shall terminate unless PHOTOZIS agrees otherwise in writing.

The Client must then discontinue commercial use of the applicable media.

Where reasonably practicable, the Client must remove such media from marketing channels under the Client’s control.

15.3 Refund Does Not Automatically Release Claims

A refund by itself does not constitute a mutual release of all claims unless PHOTOZIS and the Client enter into a separate written release or settlement agreement.

PHOTOZIS may condition a negotiated settlement or full dispute resolution upon execution of such a written release where legally appropriate.

15.4 No Obligation to Continue Performance

Following a valid termination and applicable refund, PHOTOZIS shall have no obligation to continue performing cancelled or unperformed services.

16. RIGHT TO DECLINE FUTURE SERVICES

16.1 No Obligation to Accept Future Work

PHOTOZIS INC. reserves the right, to the fullest extent permitted by law, to decline any future booking, assignment, project, or service request for any lawful business reason.

Completion of prior projects does not create an obligation for PHOTOZIS to accept future assignments from the same Client.

16.2 Reasons for Declining Future Services

PHOTOZIS may decline future services for reasons including, without limitation:

- Loss of trust in the Client
- Deterioration of the professional relationship
- Repeated disputes regarding pricing
- Repeated disputes regarding service scope
- Repeated payment issues
- Chargeback abuse
- Suspected fraud
- Copyright or licensing violations
- Unauthorized media modification
- Unauthorized branding removal
- Repeated demands for unpaid work
- Abusive or hostile behavior
- Safety concerns
- Excessive operational burden
- Reputational concerns
- Prior breach of this Agreement
- Scheduling or staffing limitations
- Geographic limitations
- Capacity limitations
- Other reasonable lawful business considerations

16.3 No Right to Prior Pricing or Benefits

PHOTOZIS is not required to continue:

- Prior pricing
- Discounts
- Legacy pricing
- Complimentary services
- Promotional upgrades
- Fee waivers
- Preferred-client arrangements

for future projects.

16.4 Compliance with Applicable Law

Nothing in this Section authorizes discrimination prohibited by applicable federal, state, or local law.

17. PROFESSIONAL CONDUCT

17.1 Professional Communication

Both parties are expected to communicate professionally regarding:

- Pricing
- Scheduling
- Revisions
- Service concerns
- Billing
- Deliverables
- Disputes

17.2 Abusive Conduct

PHOTOZIS may require that communications be conducted in writing where the Client engages in:

- Repeated yelling
- Threats
- Harassment
- Intimidation
- Abusive language
- Unreasonable hostile conduct

PHOTOZIS may end a telephone conversation or in-person interaction where such conduct occurs.

17.3 Safety and Workplace Conduct

PHOTOZIS may stop or refuse work where working conditions present reasonable concerns regarding safety, harassment, unlawful conduct, dangerous animals, unsafe property conditions, or other material workplace risks.

18. DELIVERY & CORRECTIONS

18.1 Delivery Timeframes

PHOTOZIS will use commercially reasonable efforts to deliver completed media within the estimated timeframe communicated during booking.

Delivery estimates may vary depending on:

- Property size
- Project complexity
- Weather
- Editing requirements
- Equipment or platform issues
- Unexpected operational circumstances

Unless expressly guaranteed in writing, delivery estimates are not strict deadlines.

18.2 Correction Requests

The Client should report missing deliverables, technical defects, or service discrepancies within seven (7) calendar days after delivery.

PHOTOZIS will review the request and determine whether the issue falls within the purchased scope.

18.3 Additional Revisions

Requests outside the original scope may be treated as additional paid work.

18.4 Standard Estimated Turnaround Times

Unless otherwise expressly agreed in writing, the following are PHOTOZIS's standard estimated production turnaround times for ordinary projects within the applicable service scope:

- Standard Photography (properties under 2,000 sq. ft.): Next business day.
- Premium Services (PHOTOZIS Signature, Bright, Virtual Clean-Up): Approximately two (2) business days.
- Properties exceeding 2,000 sq. ft.: Approximately two (2) business days.
- Commercial Properties: Approximately two (2) business days.
- Video Services: Approximately one (1) to three (3) business days.
- Airbnb Photography: Approximately two (2) to three (3) business days.
- Custom Work, including 3D renders and specialized projects: An estimated timeline will be provided upon approval of the applicable quote.

These are standard estimates, not guaranteed delivery deadlines. A stated estimate may be revised under Sections 18.5 through 18.7. Business days exclude Saturdays, Sundays, and holidays observed by PHOTOZIS.

18.5 Commencement of Production Time and Late Appointments

For services ordered and fully specified before the appointment, the estimated turnaround period begins on the first business day following completion of the on-site appointment. Appointments scheduled to begin after 3:00 PM local property time require one (1) additional business day beyond the applicable standard estimate.

For add-on services requested after the initial booking, or for services requiring Client selections, reference images, instructions, access, or approval, the estimated production period begins no earlier than the first business day after PHOTOZIS receives all necessary information and the Client approves any applicable additional charges. Delays attributable to incomplete instructions, missing materials, delayed approvals, or requested changes may extend the estimated completion date.

18.6 Additional Services and Extended Production Time

Virtual Staging, Weather Replacement, Rain-to-Shine, Seasonal Transformations, Object Removal, Virtual Renovation, Advanced Retouching, complex Video Editing, 3D Rendering, and other optional or custom enhancements may require additional production time beyond the standard photography turnaround period. The applicable estimated timeframe depends on the quantity and complexity of the requested work and need not match the estimated delivery date for the original photography package.

PHOTOZIS may reasonably adjust estimated delivery timelines based on project size or complexity, additional services, production capacity and workload, technical requirements, weather, platform or equipment issues, third-party dependencies, and other circumstances affecting production. PHOTOZIS will use commercially reasonable efforts to notify the Client of material anticipated delays and provide a revised estimate when practicable.

18.7 Separate Deliveries; Rush Requests; No Guaranteed Deadline

PHOTOZIS may deliver standard photography and additional or premium services separately. Delivery of one portion of an order does not require simultaneous completion of all other portions.

Rush or guaranteed-date delivery is available only if expressly accepted and confirmed by PHOTOZIS in writing for the specific deliverables and deadline. A Client's listing date, marketing launch, or other external deadline does not by itself create a guaranteed PHOTOZIS delivery obligation.

Nothing in Sections 18.4 through 18.7 permits PHOTOZIS to disregard an expressly agreed guaranteed deadline or removes remedies that cannot lawfully be excluded.

19. NO GUARANTEE OF MARKETING RESULTS

PHOTOZIS provides professional media services but does not guarantee:

- Sale of the property
- Lease of the property
- A specific sale price
- Number of showings
- Number of inquiries
- Number of offers
- Speed of sale
- Marketing performance

20. THIRD-PARTY PLATFORMS

PHOTOZIS does not guarantee permanent availability, uninterrupted operation, or compatibility of third-party platforms, including:

- MLS systems
- Social media platforms
- Hosting platforms
- 3D tour providers
- Cloud storage providers
- Syndication services

21. LIMITATION OF LIABILITY

To the maximum extent permitted by applicable law, PHOTOZIS shall not be liable for indirect, incidental, special, exemplary, or consequential damages arising from the services or this Agreement.

Nothing in this Agreement excludes liability that cannot lawfully be excluded.

22. NOTICE OF BREACH

If PHOTOZIS reasonably identifies a violation of this Agreement, PHOTOZIS may issue written notice describing the alleged breach and requesting corrective action.

For a curable breach, PHOTOZIS may provide a reasonable opportunity to correct the violation.

Where immediate action is reasonably necessary to prevent:

- Ongoing intellectual property misuse
- Property misrepresentation
- Reputational harm
- Fraud
- Significant financial loss
- Continued unauthorized publication

PHOTOZIS may request immediate corrective action.

23. TERMINATION OF LICENSE FOR BREACH

To the extent permitted by applicable law, PHOTOZIS may suspend or terminate the applicable license for an uncured material breach of this Agreement.

Termination does not automatically waive rights or obligations that arose before termination.

24. INDEMNIFICATION

To the extent permitted by law, the Client agrees to defend and indemnify PHOTOZIS INC. against third-party claims, damages, and reasonable legal expenses arising from:

- Unauthorized Client modifications
- Client-created property misrepresentations
- Unauthorized transfer of PHOTOZIS media
- Unauthorized use of PHOTOZIS intellectual property
- Client violations of applicable MLS or advertising rules

This obligation does not apply to the extent the claim results from PHOTOZIS's own negligence, misconduct, infringement, or breach of this Agreement.

25. GOVERNING LAW

This Agreement shall be governed by and interpreted in accordance with the laws of the State of Illinois, without regard to its conflict-of-law principles.

26. ENTIRE AGREEMENT

This Agreement, together with the applicable:

- Booking confirmation
- Accepted quote
- Invoice
- Written service confirmation
- Signed addendum

constitutes the agreement between the parties regarding the applicable services and Licensed Content.

27. WRITTEN AUTHORIZATION

Exceptions involving:

- Copyright ownership
- Material AI modifications
- Removal of PHOTOZIS branding
- Transfer of media rights
- Third-party editing authorization

must be expressly authorized in writing by PHOTOZIS INC.

28. AMENDMENTS

PHOTOZIS may update this Agreement for future orders.

Updated terms do not automatically modify an already accepted order unless the parties lawfully agree otherwise.

29. SEVERABILITY

If any provision of this Agreement is found invalid or unenforceable, the remaining provisions shall remain in effect to the fullest extent permitted by law.

30. NO WAIVER

Failure by PHOTOZIS to enforce any provision on one occasion does not constitute a permanent waiver of that provision.

31. ELECTRONIC RECORDS

The parties agree that electronic acceptance, electronic signatures, booking records, emails, text messages, and other electronic records may be used to document agreements, authorizations, and communications, subject to applicable law.

32. CONTACT INFORMATION

PHOTOZIS INC.

Email:

PhotozisStudio@gmail.com

Website:

photozis.us

Agreement Version:

3.6

Last Updated:

October 29, 2026

END OF AGREEMENT